

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.3845 of 2010

Sree Ambica Dash

.... Petitioner

-Versus-

Sree Nakulashur Chatterjee and others

.... opposite parties

None appears

.... For the petitioner.

Mr. Md. Sultan Mahmud, Advocate

.... For the opposite party

No.1.

Heard and judgment on 25.01.2024.

This Rule was issued calling upon the opposite party No.1 to show cause as to why the impugned judgment and order dated 30.06.2010 passed by the learned Additional District Judge, 1st Court, Naogaon, in Miscellaneous Appeal No.1 of 2009 dismissing the appeal and affirming the judgment and order dated 14.08.2008 passed by the learned Assistant Judge, 7th Court, Mohadevpur, Naogaon, in Miscellaneous Case No.43 of 2002 (Moth Pre-emption) allowing the pre-emption.

Facts in short are that respondent as petitioner filed above Miscellaneous case No.43 of 2000 under Section 96 of the State Acquisition and Tenancy Act for pre-emption of 'Ka' schedule land alleging that the petitioner was a co-sharer by inheritance in above

kharian and opposite party No.1 was a stranger of the same. Opposite party No.2 transferred above 'Ka' schedule land to opposite party No.1 by a deed of exchange No.8202 dated 16.07.2002 but in fact above exchange deed was a deed of out and out sale. It was further stated that by above deed of exchange 'Kha' schedule land was transferred to opposite party No.2 who on the same date sold out the same to opposite party No.5 who is the son-in-law of opposite party No.1. Above transfer of 'Kha' schedule land by opposite party No.2 to opposite party No.5 shows that the impugned deed of exchange was in fact a deed of sale.

Opposite party No.1 contested the case by filing written objection alleging that the disputed 'Ka' schedule land was the homestead land of opposite party No.2 and opposite party No.1 did not have any dwelling house and opposite party No.2 was leaving the area. So, he exchanged his 'Ka' shecule land with the opposite party No.1 for his 'Kha' schedule land. Opposite party No.1 is possessing the disputed land as homestead land.

At trial petitioner examined two witnesses and opposite party No.1 examined one. The petitioner produced and proved impugned deed of exchange No.8202 dated 16.07.2002 and kabala deed Nos.8203 dated 16.07.2002 which were marked as Exhibit No.1 and 1(Ka) respectively.

On consideration of facts and circumstances of the case and evidence on record the learned Assistant Judge allowed the case and granted pre-emption to the petitioner.

Being aggrieved by above judgment and order dated 14.08.2008 passed by the learned Assistant Judge opposite party No.1 preferred Miscellaneous Case No.01 of 2009 to the District Judge, Naogaon which was heard by the learned Additional District Judge, Naogaon who dismissed the appeal and affirmed the judgment and order of the Trial Court.

Being aggrieved by above judgment and order of the learned Additional District Judge passed in Miscellaneous Appeal No.01 of 2009 the appellant as petitioner moved to this Court and obtained the Rule.

No one appears on behalf on behalf of the petitioner when the matter was taken up for hearing although the matter appeared in the list for hearing today.

Mr. Md. Sultan Mahmud, learned Advocate for the opposite party No.1 submits that impugned land of the 'Ka' schedule was transferred to opposite party No.2 who is a stranger to the disputed Khatian. Above transfer was an out and out sale but to defeat the right of pre-emption of the petitioner above deed was designated as an Exchange deed. Opposite party No.2 allegedly received the land of 'Kha' schedule belonging to opposite party No.1 by virtue of above

exchange. But opposite party No.2 sold out above 'Kha' schedule land to opposite party No.5 who is the son-in-law of opposite party No.1.

I have considered the submissions of the learned Advocate for opposite party No.1 and carefully examined all materials on record including the judgments passed by the Trial Court and Court of appeal below.

It is not disputed that 'Ka' schedule land belonged to opposite party No.2 who transferred the same to the opposite party No.1 by the impugned deed of exchange dated 17.06.2002 and opposite party No.1 is a stranger to disputed jama and the petitioner is a co-sharer by inheritance. It is also not disputed that 'Kha' schedule land of above deed of exchange belonged to opposite party No.1 which was given to opposite party No.2 in exchange of the disputes land. It is admitted that after execution and registration of the impugned deed of exchange No.8202 dated 17.06.2002 opposite party No.2 sold out 'kha' schedule land by registered kabala deed No.8203 dated 17.06.2002 on the same to opposite party No.5 who is the son-in-law of opposite party No.1.

Above admitted position clearly show that on the strength of the impugned exchange deed No.8202 dated 14.06.2002 opposite party No.1 got disputed 'Ka' schedule land and opposite party No.2 got 'Kha' schedule land of opposite party No.1 which he sold out to opposite party No.5 on the same date.

Above undisputed facts clearly show that the impugned deed of exchange No.8202 was truly acted upon the same was a valid and legal document of transfer.

It is true that the petitioner has claimed that above deed of exchange was in fact a deed of sale. But the petitioner did not adduce any evidence to prove payment of monetary consideration by opposite party No.1 to opposite party No.2.

On the contrary the petitioner has admitted that 'Kha' schedule land of above deed of exchange which belonged to opposite party No.1 was transferred to opposite party No.2 who sold out the same to opposite party No.5.

As such, the claim of the learned Advocate for the opposite party that the impugned deed of exchange No.8202 was not at all a deed of exchange but a deed of sale is without any lawful basis and not tenable in law.

Section 96(10)(b) of the State Acquisition and Tenancy Act, 1950 excludes a transfer by exchange from the purview of pre-emption and since the impugned transfer was effected by a deed of exchange the same was not subject to pre-emption. But the learned Judges of both the Courts below miserably failed to appreciate above factual and legal position of the case and the learned Additional District Judge most illegally dismissed the appeal and affirmed flawed and

erroneous judgment and order of the Trial Court which is not tenable in law.

In above view of the materials on record I find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The impugned judgment and order dated 30.06.2010 passed by the learned Additional District Judge, 1st Court, Naogaon, in Miscellaneous Appeal No.1 of 2009 dismissing the appeal and affirming the judgment and order dated 14.08.2008 passed by the learned Assistant Judge, 7th Court, Mohadevpur, Naogaon, in Miscellaneous Case No.43 of 2002 (Moth Pre-emption) is hereby set aside and above Miscellaneous Case is dismissed on contest with cost.

However, there is no order as to costs.

Send down the lower Court's records immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER